

Promoting the 'Public' in Digital Architectures

The Internet is a key phenomenon behind the paradigmatic social changes that we are witnessing today. Shaping the Internet is therefore an important determinant of the direction of social change. It is no longer a simple technical platform about which scientists and technical experts are best placed to take all the important decisions. The question thus becomes important: who decides the direction in which the Internet is evolving? A common response is that the Internet is a dynamic platform which responds to user needs. User determination of the trajectory of the Internet's evolution is today largely a myth, though some oases of alternative practices amongst committed techies or perhaps even among some ordinary 'power users', do exist. Yet, to the extent the user has a role, it is largely in his capacity as a consumer. Largely, it is the corporatist and statist powers that play an overwhelming driving role. Other than in authoritarian countries, it is global corporate power, often with strong support from governments, especially those of the North, that is the major determinant of the direction that the Internet is taking. The Internet being a major force in our shifting social configurations, it should not be difficult to see what this means for our future, especially for people and communities that are already marginalised.

In order to address the issue of the global corporatist stranglehold on the Internet, which is increasingly curtailing most of its egalitarian potential which was much vaunted till a few years ago, IT for Change (ITfC) has been working both at global and national levels. At the global level, our principal effort has been towards seeking globally democratic institutions for Internet Governance (IG), strengthening the progressive global civil society in the IG arena, and also establishing South-South cooperation in technical governance practices. At the national level, we have been trying to advocate progressive IG positions with the Indian government, and to get a national level IG dialogue underway. We have also been associating with the government on framing open standards in e-governance. We have been promoting the concept of public software and working with many government and non-governmental agencies for them to adopt and promote public software.

Global Level

Seeking Globally Democratic Internet Governance Institutions

The last year was most significant in the manner in which we were able to work closely with developing country governments, especially India, Brazil and South Africa (the IBSA countries), in developing momentum towards seeking IG institutional alternatives at the global level. In May 2010, we were invited to be present at the proceedings of the annual session of the United Nations (UN) Commission on Science and Technology for Development (CSTD) in Geneva. In our statement to the Commission, for the first time, we called for a recognition of the World Summit on the Information Society (WSIS) mandated

process of 'Enhanced Cooperation' as a process that is 'distinct but complementary' to the open, discursive platform of the UN Internet Governance Forum (IGF). Many developed countries have been trying to posit that the new institutional development mandate from WSIS has been exhausted since the IGF was established. This served to help maintain the institutional gap in global IG which has been used by governments and corporates of the North, often in cahoots, to dictate the direction of the development of the Internet and the information society, as per their partisan interest. The phrase 'distinct but complementary', which was inscribed in the relevant resolution of the UN General Assembly, has provided a clear space for a new global institution and was very effective in developing country advocacy in this regard. It

I have been reading your inputs for the meeting on enhanced cooperation more than four times now, and each time, I find valuable new ideas and thoughts. I commend your personal concern and devotion to this as well as your courage to say many things that many others would not dare to even approach.

Yasser Hassan, Counsellor,
Permanent Mission of Egypt
to the United Nations,
Geneva

I believe IT for Change's written contribution inspired us a lot or at least, confirmed some of our perceptions: the importance of network neutrality, the idea of a CSTD Working Group and not closing the door to the possibility of a new institution for Internet Governance. Our talks along this year were also very important. In my point of view, IT for Change's work is one of the examples that proves the viability and necessity of the multi-stakeholder approach on Internet Governance.

Alvaro Galvani, Head of the
Division for the Information
Society, Ministry of External
Relations, Brazil

was also used by the UN Deputy Secretary General during the UN Consultations on 'Enhanced Cooperation' in December 2010.

It was after ITfC's statement to CSTD that the call for an open consultation to chart the way forward for the process of 'Enhanced Cooperation' was made. Subsequently, the UN did call for such an open consultation in New York in December 2010, which marks an important stepping stone towards a more democratic global IG platform or institution. ITfC made a written contribution to the mentioned UN consultations, which was followed widely, and was among the few which proposed a clear institutional option. Importantly, IBSA countries, for the first time, made a joint statement on an IG issue on a global stage. It identified some key global IG issues, and called for setting up a new platform or institution to address global Internet-related policy issues. The start of such close cooperation among IBSA countries was partly triggered by a meeting among IBSA government and civil society representatives that ITfC proposed and helped organise on the sidelines of the CSTD.

The Commission also set up a Working Group on IGF improvements. Earlier, when there was a stalemate on the composition of the Working Group during CSTD's inter-sessional meeting in December 2010, especially with regard to the status of the non-governmental members of the Working Group, ITfC intervened actively and helped solve the issue by suggesting that non-governmental members be called 'invited participants'. This is an important innovation in the UN system and perhaps for the first time a substantive working group of the UN Standing Commission has had such non-governmental participation. ITfC is among the five civil society participants of the Working Group.

ITfC submitted numerous written and oral contributions to the Working Group on IGF improvements. We were also able to work closely with many developing country governments and non-governmental organisations (NGOs) to considerably influence their inputs to the Working Group. In the two face-to-face meetings of the Working Group in Switzerland in February and May 2011, we were one of the most active participants, coordinating our positions closely with civil society and developing country government participants.

Partly due to these efforts, developing countries, especially India, were able to take a leadership role at the Working Group meetings. India's proposal to the Working Group was the key document around which the discussions revolved. This is unlike most other times when developing countries were left responding to the substantive agenda set by the North. What was particularly important with regard to what came to be known as the 'India Proposal' is that, while developing countries have mostly been blamed for being against multi-stakeholderism in the global IG arena, a very clear and nuanced position of how India saw multi-stakeholderism was able to be put up. It was emphasised that multi-stakeholderism should clearly be designed for getting those voices into policy making spaces, which are otherwise marginalised. It should not be used to give disproportionate voice to those who may already be over-represented.

The Working Group could not come up with proposals for IGF improvements and therefore its mandate was extended by one year, during the May meeting of CSTD. The 'India Proposal' to the Working Group has been referred to at many forums, for instance at the Council of Europe's 'Internet Freedom Conference – From Principles to Global Treaty Law' in April 2011. A workshop is being organised to specifically discuss this proposal at the 6th annual meeting of the UN IGF in Nairobi in September 2011.

ITfC was one of the few panelists invited from outside Europe in the above mentioned 'Internet Freedom Conference – From Principles to Global Treaty Law'. We were asked to present our views on multi-stakeholderism in the IG arena. We insisted that multi-stakeholderism must be a process within and subsidiary to the institution of democracy. We further added that it should not be presented as a post-democratic political system as there is a tendency to present it as such in the IG arena. A few senior government officials of European countries congratulated us after the meeting on taking such a clear and firm stand on the relationship between multi-stakeholderism and democracy.

Engagement with Global Civil Society

We continued to exercise a leadership position on the Civil Society Internet Governance

Caucus (IGC), the premier global civil society group in the IG arena. The numerous e-discussions in the group were directed at emphasising the need for democratising IG, moving towards some clear global IG institutions, and shaping a development agenda in IG. We also took the lead on most of the initiatives during the year taken up by the IGC. First, we initiated the process of writing a letter to the UN Secretary General, protesting against not taking up the 'open' consultations on 'Enhanced Cooperation' in a full multi-stakeholder manner by limiting civil society participation. Subsequent to our interventions, some changes in the format of the consultation were made. Later, when the e-G8 forum was planned in Paris, with almost no civil society participation, we again led the IGC initiative to write to the French government against such an exclusion. Our letter was widely published, including in the mainstream media. Subsequent to this protest, some limited efforts were made to increase civil society participation in the meeting.

ITfC played an important part in finalising the Charter on Internet Rights and Principles prepared by the IGF Dynamic Coalition on Internet Rights and Principles, of which ITfC is a founding member. This Charter was officially taken note of by the Council of Europe in its documents and the Council plans to keep working with us on it. Our contributions to the Charter were especially on positive rights, chiefly on the right to access the Internet and the right to equality vis-à-vis the architecture of the Internet, for which the term 'Net Equality', proposed by us, was used in the Charter. These contributions were made after long and rich debates on the e-list about the issue of positive rights and the development agenda vis-à-vis the Internet. Apart from the specific outcomes in terms of the Charter language, these discussions have had a significant role in shaping the global civil society discourse. In this discourse, issues have not yet been framed, nor has the required vocabulary developed, from a developing country perspective. It is in this regard that our interventions and issue-framing have been pioneering. The Charter on Internet Rights and Principles was presented at the IGF meeting in September 2010 in Vilnius (Lithuania). Later in 2011, we again contributed

significantly in framing '10 Internet Rights and Principles', a short and impactful document which has got even more visibility than the main Charter and has been translated into many languages. Our contributions to it consisted of highlighting social justice, along with human rights, as the key determinant on how the Internet should be governed; seeking a clear right of association over and through the Internet; and once again, framing prominently the 'Net Equality' issue.

It must be underscored that with regard to both the major civil society e-discussion spaces mentioned above, these lists are subscribed to by a very large number of influential global IG actors, and are thus major spaces for advocacy. ITfC is in the advisory group of the Network of Networks Project of the Association for Progressive Communications (APC). Two members of ITfC attended the meeting of the Network in Italy in July 2010. The meeting comprised a small group of intense discussions on various global IG issues. The tensions between a dominant civil and political rights based agenda and a more holistic alternative which proceeded from the realities of marginalised groups was palpable during the discussions. We strongly argued for the need to look at the structural impacts of social, economic, political and cultural flows that are being globally reconfigured because of the Internet, and to place civil society advocacy positions in these structural realities.

ITfC is also in the Advisory Group of Diplo Foundation's global IG work, and we were consulted on how they shape their online IG courses. We have been in talks for sometime now on how to give a greater development agenda orientation to the global IG discourse.

South – South Cooperation

We have mentioned how a high-level of cooperation on IG issues has begun among IBSA countries since May 2010, and our role in it. For sometime now, ITfC has been advocating a meeting among IBSA countries, including their civil society organisations, to brainstorm on what would constitute a development agenda for global IG. This was important to be able to have an appropriate substantive agenda at global forums where

[IT for Change] certainly contributes a lot to the running of the Internet Governance Forum from what I observed in Vilnius – I liked your ad hoc style in your interventions as opposed to the more detailed written interventions.

Christopher Corbin,
independent researcher,
referring to IT for
Change's presence at the
Internet Governance
Forum meeting in
Vilnius, Lithuania

developing countries are for the most part left with reacting to agendas set by others (for instance, multi-stakeholderism, in the global IG space). It is difficult to argue for a new global institution for IG without making a clear and strong statement of all the key issues that are required to be addressed by the proposed organisation. This year, the Government of Brazil and the Brazilian Internet Steering Committee agreed to host the meeting that we have been advocating for. This IBSA Seminar of Global Internet Governance will be held in Rio de Janeiro in September 2011. ITfC is closely associated with doing background work for, and organising this seminar. We are working with our Brazilian civil society partner, the Centre for Technology and Society in Rio de Janeiro.

We arranged a meeting with Martin Khor, the head of the inter-governmental organisation, South Centre, with a mandate of promoting South-South cooperation in May 2011, along with the Centre for Technology and Society of Brazil. We discussed how it is important to shape a development agenda in the IG space. The South Centre completely agreed with the imperative, and we have planned meetings in Geneva between development country diplomats, in this regard. We have also invited the South Centre to be a part of the referred IBSA Seminar on Global Internet Governance.

National Level

Internet Governance

Our engagement at the national level in the area of IG has still mostly been in influencing India's perspective and positions vis-à-vis global IG issues. However, this has helped us influence domestic IG also in progressive directions. As with other IT areas, due to many structural reasons, chiefly the larger-than-life image of India's IT industry, national IG perspectives have for the large part, been influenced by an industry perspective, with very little involvement of progressive civil society actors. We have been trying to build a civil society constituency in this area, and we did make considerable progress in this regard in 2010-11. Many important civil society actors are now much more ready to be engaged with these issues, and see it as important to development and democracy.

We have been a part of the advisory group of the planned India IGF. We are also on the advisory group of the IG scholarships programme of the Department of Information Technology (DIT), Government of India (GoI), and the National Internet Exchange. We also advised the DIT supported 'Global Internet Governance Advocacy' project of Nalsar Law School, Hyderabad.

Public Software

Public institutions (government schools and colleges, government administrative departments, as well as NGOs and community-based organisations) support the public ownership of resources since that is essential for enabling equity and social justice. Software is an important digital resource, and has a central role in the new 'digital society' being created. Hence, public ownership over software resources that are essential to participate in the digital world is crucial. Public institutions should therefore adopt and promote such 'public software' to create an eco-system of universal access to basic software, as well as community participation in its creation and modification.

As in the case of public education or public health, public institutions are responsible to ensure universal access to public software, as well as support public participation in its creation and sharing. Software developed for public service has a unique context and objectives deriving from those of public service; with its imperative of providing public goods and ensuring equity and social justice. It is well known that private and commercial actions have very different contexts, motives and considerations than public actions. For instance, the largest possible reach and diffusion, as well as transparency of action, are basic to public service, which are not necessarily values espoused by private and commercial players. Thus, public software would cater to the requirements of universal access, transparency and participation. ITfC participated in co-organising an international conference on 'Software in the Public Sector, with focus on Public Education' with the UNESCO/UN Solution Exchange ICTD unit and the IT@School Project of the Government of Kerala in May 2010 in Kochi

For us, adopting public software is strengthening our vision of a just society. [...] So far, I have been a mere consumer of software without understanding that software should be a public resource, one made available to all. The idea of 'digital khadi' is appealing.

Shantakumari, Indian National Science Academy, New Delhi, India

(India). The workshop encouraged practitioners and policy makers to frame 'Public Sector Software Architecture (PSSA)' that can help integrate computerisation projects in public sector institutions in a manner that aligns with the public sector ethos.

The Kochi Declaration, an important output of this conference, recognises that the unique context of public software and its objectives of ensuring equity and social justice has implications for ensuring universal access to such software, as well as transparency and participation by the citizens in its design and use, and urges public institutions in these countries to adopt and promote public software.

The 'Guiding principles for the policy on software for the public sector', that emerged from the South India Regional Workshop in Bengaluru in February 2010, were also finalised in the Kochi conference. More details about this conference and its proceedings can be found here: www.public-software.in/Kochi_Conference. With support from UNESCO, ITfC has established a 'Public Software Centre' (PSC) to help public institutions in adopting and promoting public software.

ITfC, as a member of the FLOSSInclude¹ consortium, attended the project's final workshop held in Brussels (Belgium) in June 2010 and presented our pilot work in Karnataka.

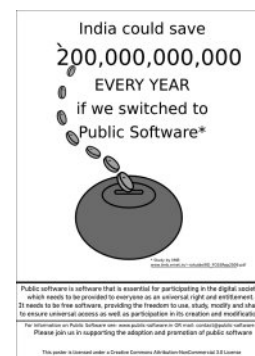
A Knowledge Building Workshop (KBW) was organised by the Karnataka Community (KC) of the United Nations Solution Exchange, (UN-Solex) in Bengaluru in June 2010, to engage in a dialogue amongst the Community of Practitioners (CoPs). The workshop focused on the role of 'knowledge sharing' to support the dissemination of knowledge, experiences and perspectives to support CoPs work, and bring about greater synergy and congruence. ITfC spoke about the necessity to support the 'free and open sharing' of knowledge to meet the goals of development and the power of using information and communication technology (ICTs) for creating and managing knowledge, and networking for the dissemination of knowledge.

From this workshop emerged the 'Knowledge Management and Knowledge Networking' (KMKN) project. The rationale is to encourage the use of ICTs as an important organisational resource for KMKN processes within the development sector. In addition, the aim is to popularise the idea of public software within the development sector and integrate ICTs within organisations in a more meaningful way. Capacity building workshops for development sector organisations working in the area of child rights and education, across the Bengaluru and Mysore divisions, were organised by the PSC, with the UN-Solex – Karnataka Community and support from UNICEF.

Organisations willing to adopt public software were given support in terms of hand holding and building internal capacities, post the workshop. A public software wiki (http://public-software.in/PSwiki/index.php/Frequently_Asked_Questions) has been created that has frequently asked questions (FAQs) about public software and its adoption. To popularise the idea of public software among public institutions, posters were designed in both English and Kannada (<http://www.public-software.in/posters>). The PSC has created a few models for NGOs to adopt public software for KMKN and organisations interested in adopting public software could contact the PSC. Networks of NGOs can especially benefit from the KMKN tools and processes for strengthening their research, programmatic and advocacy activities.

ITfC participated in CeTIT 2010 (Citizens Empowerment Through Information Technology), the second edition of the Conference-Cum-Exhibition on e-governance in July 2010, organised by the Federation of Indian Chambers of Commerce and Industry (FICCI), DIT, Government of Tamil Nadu, the Electronics Corporation of Tamil Nadu Limited (ELCOT) and the Tamil Nadu eGovernance Agency (TNeGA) in Chennai, and spoke on 'Public Software for Public Institutions – Rethinking e-Governance'.

The year 2010-11 ended on a positive note. The term public software was a contested term



4 The FLOSSInclude project (<http://www.flossinclude.org>) is a project funded by the European Commission (EC) which aimed to conduct research on Free/Libre/Open Source Software (FLOSS) in developing countries.

The Catalyst Group strongly believes in the ideology of public software. Given its number of clients and varied types of work, the full adoption of public software is gradual, with a number of challenges. However, we have successfully utilised public software applications, such as Kdenlive (video-editing), Thunderbird (email client) and Google Chrome and Mozilla Firefox (Internet browsers). We now explore public software options for our new software needs. We thank the Public Software Centre for their support in helping us optimise the use of public software in our work.

Siddhi Mankad, Catalyst Group, Bengaluru, India⁵

amongst free software followers, who felt it was a distraction from the concept and philosophy of free software. However, after several rounds of discussion with the Free Software Foundation, Richard Stallman, the father of the free software movement, recognised the term 'public software', suggesting a slightly revised definition which can be found on: www.public-software.in/Public-software. As per this revised definition, public software is always free software, and refers to basic software that all need to engage with the digital society. Public software needs to be universally accessible and for this, public investment and support is essential. Such support can be in the form of collaboration between public institutions and free software communities to create and support the required applications.

Looking Ahead

It is not difficult to see that almost all our activities in the area of technology governance are a work-in-progress which will be carried on, and intensified, as appropriate, in the coming year. We expect the next year to be an important one for the global IG space. We would like to be able to contribute in important ways to the UN IGF, through our membership in the UN Working Group on IGF Improvements. We also look forward to help implement these improvements. At the same time, in 2011, momentum is building on how to

manage the global IG, with many organisations coming out with IG principles, and we hope to direct this momentum in the direction of seeking democratic global IG spaces and institutions. We expect to be able to help strengthen the IBSA platforms and initiatives in the IG arena, and will also work with other developing countries closely in this regard. We would like to work closely with the South Centre to develop an observatory, a newsletter and an e-discussion space on the development agenda in IG.

While keeping up our engagement with mainstream global civil society groups we are already involved with, we plan to focus more on creating specific coalitions around progressive agendas in the global IG. We plan to be able to set up a global civil society platform with the involvement of interested governmental actors on development and democratic aspects of global IG.

We plan to pay special attention to developing a national level interest group among civil society organisations on the implications of the Internet, and therefore of IG, to various areas of development and democracy. We would also like to focus on the anti-competitive practices of many global Internet companies with the Competition Commission. This would also be a good way to attract the attention of civil society groups to key issues that are involved.

We recognise that contributing to shaping alternative practices vis-à-vis the global and national digital architecture is as important as engaging with policy levels. We will further extend our engagements with Brazil, and perhaps with South Africa as well, on the public software work. The effort is to shape alternatives to the dominant North-centric corporatist model in a major scaled up manner, which requires wider global support, including of governments and the domestic digital industry. Such a network of engagements and outcomes will be sought to be shaped.

In addition, at the local level, the PSC aims to further our work in three defined areas:

1. With *Rashtriya Madhyamika Shikshana Abhiyan* (RMSA), Karnataka, and our

Website of the Public Software Centre launched by Davide Sorti (UNESCO Paris) at the International Conference on 'Software in the Public Sector, with focus on Public Education' (Kochi, India)



⁵ More quotes on public software migration from NGOs are available at: www.public-software.in/Testimonials.

demonstration project 'Teachers Communities of Learning' (TCoL) in Bengaluru, to incorporate public educational software tools in schools

2. With the Department of Technical Education (DTE) in order to build capacities to use public educational tools in polytechnics, replacing proprietary tools
3. With NGOs and networks of NGOs under our KMKCN programme to help them use a variety of techno-social processes for supporting their work.

One NGO network is the Karnataka Network of Positive People (KNP+) which works with People Living with HIV/AIDS (PLHIV). During the coming year, the PSC will be working with Communication for Development and Learning (CDL) and KNP+, to strengthen the network through two KMKCN processes, providing video training for PLHIVs, and helping them to create and manage their own website <http://www.redribbonkarnataka.org> through periodic workshops, on-site support and hand-holding to ensure the adoption of the new techno-social processes.

A similar approach will characterise our public software work in all the three areas. The PSC will also work on identifying and adopting public

software applications in areas such as statistical analyses for research and financial accounting in which proprietary tools are largely used. A list of all public software tools in the different domains that the PSC works in, is available at www.public-software.in/FOSS-applications.



Sri M.A. Baby, Education Minister of Kerala (India), addressing the participants of the International Conference of "Software in the Public Sector, with focus on Public Education" (Kochi, India)